

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0000673

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ASHLEY SHAH

vs.

DEFENDANT: NITIN SHAH, ET AL

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Defendant Nitin Shah filed a motion to deem the truth of matters specified in Requests for Admission Set One, against Defendant Fareed Himmati. Defendant Shah has also requested sanctions. Notice was provided to Defendant Himmati and no opposition was filed. The parties appeared on August 26, 2026, and the Court continued this hearing as no tentative was posted on this particular motion. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants Defendant's motion in light of the non-opposition and orders that the truth of matters specified in the Requests for Admission be deemed admitted. Additionally, monetary sanctions shall be ordered in favor of Defendant Nitin Shah and against Defendant Himmati in the order of \$1,775 to be paid within 30 days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002302

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CHRIS B. BARGER

vs.

DEFENDANT: ANDREW W. LANDIES, ET
AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

The motion for summary adjudication of Issue Nos. 1-3 is granted.

Allegations in the Complaint and Cross-Complaint

Complaint

In his Complaint, Plaintiff/Cross-Defendant Chris Barger (“Barger”) alleges that he owns 682 Wilson Avenue in Novato (“the Barger Property”), where he lives with his wife, Cross-Defendant Myrna Barger (collectively, Chris and Myrna are the “Bargers”). (Complaint, ¶ 1.) Cross-Complainants Andrew W. Landies and Kristina J. Landies (the “Landies”) own and reside at 688 Wilson Avenue (“the Landies Property”). (*Id.* at ¶ 4.) Prior to 1972, the Barger Property and the Landies Property were each part of the same parcel owned by Dora Cash Young (“Young”). (*Id.* at ¶ 11.) In 1972, Young subdivided the parcel into smaller parcels comprising the Pine Knoll Estates subdivision. (*Id.* at ¶ 12.) The subdivision’s Lot 3 became the Landies Property, and a portion of Lot 4 became the Barger Property. (*Id.* at ¶ 13.) There is a well on the Barger Property. (*Id.*, ¶ 15.) Barger alleges that he has the right to use the water from the well and that the Landies have no recorded easement or license pertaining to the well. (*Id.* at ¶¶ 17-19.) Still, the Landies believe that they have a right to use the water from the well and to encroach upon the Barger Property to do it. (*Id.* at ¶¶ 21-22.) In October 2023, the Landies ran a pipe from the Landies Property through the Barger Property to the well. (*Id.* at ¶ 22.) Barger asserts causes of action to quiet title and for declaratory relief and trespass.

Cross-Complaint

The Landies filed a Cross-Complaint against the Bargers alleging that until 1972, the Barger Property and the Landies Property were part of a larger undivided parcel (the “Original Property”). The Original Property was originally owned by Joseph Cash (“Joseph”) and Dora